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Sen. Paradee & Sen. Pettyjohn
Reps. Burns, Hilovsky, Ortega, D. Short, Snyder-Hall,
Gorman; Sens. Cruce, Walsh, Wilson, Poore

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 134

AN ACT TO AMEND TITLE 11 OF THE DELAWARE CODE RELATING TO ANIMAL CRUELTY.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 1325, Title 11 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 1325. Cruelty to animals; class A misdemeanor; class F felony.

4 (b) A person is guilty of cruelty to animals when the person intentionally or recklessly:

5 (1) Subjects any animal to cruel mistreatment; or

6 (2) Subjects any animal in the person's custody to cruel neglect; or

7 (3) Kills or injures any animal belonging to another person without legal privilege or consent of the owner; or

8 (4) Cruelly or unnecessarily kills or injures any animal. This section does not apply to the killing of any
9 animal normally or commonly raised as food for human consumption, provided that such killing is not cruel. A person
10 acts unnecessarily if the act is not required to terminate an animal's suffering, to protect the life or property of the actor
11 or another person or if other means of disposing of an animal exist which would not impair the health or well-being of
12 that animal; or,

13 (5) Captures, detains, transports, removes or delivers any animal known to be a pet or owned or unowned
14 companion animal, or any other animal of scientific, environmental, economic or cultural value, under false pretenses
15 to any public or private animal shelter, veterinary clinic or other facility, or otherwise causes the same through acts of
16 deception or misrepresentation of the circumstances and disposition of any such animal.

17 (6) Confines an animal unattended in a standing or parked motor vehicle in which the temperature is either so
18 high or so low as to endanger the health or safety of the animal. A law-enforcement officer, animal welfare officer, or
19 firefighter who has probable cause to believe that an animal is confined in a motor vehicle under conditions that are
20 likely to cause suffering, injury, or death to the animal may use reasonable force to remove the animal left in the
21 vehicle in violation of this provision. A person removing an animal under this section shall use reasonable means to
22 contact the owner. If the person is unable to contact the owner, the person may take the animal to an animal shelter and

23 must leave written notice bearing his or her name and office, and the address of the location where the animal can be
24 claimed. This provision shall not apply to the legal transportation of horses, cattle, swine, sheep, poultry, or other
25 agricultural animals in motor vehicles designed to transport such animals. The owner of the vehicle from which the
26 animal is rescued and the owner of the animal rescued are not liable for injuries suffered by the person rescuing the
27 animal.

28 Paragraphs (b)(1), (2) and (4) of this section are inapplicable to accepted veterinary practices and activities carried
29 on for scientific research.

30 Cruelty to animals is a class A misdemeanor, unless the person intentionally kills or causes serious injury to any
31 animal in violation of paragraph (b)(4) of this section or unless the animal is killed or seriously injured as a result of any
32 action prohibited by paragraph (b)(5) of this section, in which case it is a class F felony.

33 After 2 misdemeanor violations of this section, any further violations that would otherwise be a misdemeanor
34 violation are to be counted as a class F felony. After 1 felony violation of this section, any further violations that would
35 otherwise be a felony violation are to be counted as a class E felony.

36 (c) Any person convicted of a misdemeanor violation of this section shall be prohibited from owning or possessing
37 any animal for 5 years after said conviction, except for animals grown, raised or produced within the State for resale, or for
38 sale of a product thereof, where the person has all necessary licenses for such sale or resale, and receives at least 25 percent
39 of the person's annual gross income from such sale or resale. Any person convicted of a second or subsequent misdemeanor
40 violation of this section shall be prohibited from owning or possessing any animal for ~~5~~ 10 years after said conviction
41 without exception.

42 A violation of this subsection is subject to a fine in the amount of \$1,000 in any court of competent jurisdiction
43 and to forfeiture of any animal illegally owned in accordance with the provisions of § 3035F of Title 16. Subsequent
44 violations of this subsection are subject to a fine in the amount of \$2,500.

45 (d) Any person convicted of a felony violation of this section shall be prohibited from owning or possessing any
46 animal for 15 years after said conviction, except for animals grown, raised or produced within the State for resale, or for
47 sale of a product thereof, where the person has all necessary licenses for such sale or resale, and receives at least 25 percent
48 of the person's annual gross income from such sale or resale. Any person convicted of a second ~~or subsequent~~ felony
49 violation of this section shall be prohibited from owning or possessing any animal for the remainder of their life without
50 exception. ~~15 years after said conviction without exception.~~

51 A violation of this subsection is subject to a fine in the amount of \$5,000 in any court of competent jurisdiction
52 and to forfeiture of any animal illegally owned in accordance with the provisions of § 3035F of Title 16. Subsequent
53 violations of this subsection are subject to a fine in the amount of \$10,000 .

54 (e) Any trained and certified animal welfare officer of the Department of Health and Social Service's Office of
55 Animal Welfare or the Department of Agriculture may impound an animal owned or possessed in apparent violation of this
56 section, consistent with § 3035F of Title 16.

57 (f) This section shall not apply to the lawful hunting or trapping of animals as provided by law.

58 (g) Notwithstanding any provision to the contrary, for a first offense misdemeanor violation of this section relating
59 to animals left in motor vehicles or the tethering of dogs, a warning shall be issued.

60 (h) Exclusive jurisdiction of offenses under this section relating to animals left in motor vehicles or the tethering of
61 dogs shall be in the Superior Court.

SYNOPSIS

This Bill updates Title 11 of the Delaware Code relating to animal cruelty. After 2 misdemeanor violations of this section, currently class A misdemeanors, all further violations are to be upgraded to class F felonies. Also, after the first felony violation of the statute, currently a class F felony, which involves intentionally killing or causing serious injury to any animal in violation of the statute, all further violations are to be upgraded to class E felonies. Also, any person convicted of a felony violation a second time shall be prohibited from owning or possessing any animal for the remainder of their life without exception.